Unless a member takes the oath, he/she cannot vote and participate in the proceedings of the House and does not become eligible to parliamentary privileges and immunities.

A person is liable to a penalty of ₹500 for each day he/she sits or votes as a member in a House in the following conditions:

1. Before taking and subscribing to the prescribed oath or affirmation; or
2. When he/she knows that he/she is not qualified or that he/she is disqualified for its membership; or
3. When he/she knows that he/she is prohibited from sitting or voting in the House by virtue of any parliamentary law.

 **Salaries and Allowances**

The members of either House of Parliament are entitled to receive such salaries and allowances as may be determined by Parliament, and there is no provision of pension in the Constitution. However, in 1976, the Parliament has provided pension to the members.

In 1954, the Parliament enacted the Salary, Allowances and Pension of Members of Parliament Act. In 2018, the salary of members was increased from ₹50,000 to ₹1,00,000[9] per month, the constituency allowance from ₹45,000 to ₹70,000 per month and the office expenses allowance from ₹45,000 to ₹60,000 per month. Earlier in 2010, the daily allowance was increased from ₹1,000 to ₹2,000 for each day of residence on duty.

Besides, the members are also provided with travelling facilities, free accommodation, telephone, vehicle advance, medical facilities and so on.

In 2018, the pension of every person who has served for any period as a member of Parliament was increased from ₹20,000 to ₹25,000[9] per month. Further, if a person has served as a member of Parliament for more than five years, he/she is paid an additional pension of ₹2,000 per month (₹1,500 per month before 2018) for every year served in excess of five years.

The salaries and allowances of the Speaker and Deputy Speaker of Lok Sabha and the Chairman and Deputy Chairman of Rajya Sabha are also determined by Parliament. They are charged on the Consolidated Fund of India and thus are not subject to the annual vote of Parliament.

In 1953, the Parliament enacted the Salaries and Allowances of Officers of Parliament Act. Under this Act, "Officer of Parliament" means any of the following officers, namely, the Chairman and Deputy Chairman of the Rajya Sabha and the Speaker and the Deputy Speaker of the Lok Sabha. In 2018, the Parliament increased the salary of the Chairman of the Rajya Sabha from ₹1.25 lakh to ₹4 lakh per month[9a]. Similarly, other Officers of Parliament (i.e., the Speaker and the Deputy Speaker of the Lok Sabha and the Deputy Chairman of the Rajya Sabha) are entitled to receive a salary per month at the same rates as are payable to the Members of Parliament. Further, each Officer of Parliament (other than the Chairman of the Rajya Sabha) is entitled to receive a daily allowance (for each day during the whole of his/her term) at the same rate as is payable to the Members of Parliament. Also, each Officer of Parliament (other than the Chairman of the Rajya Sabha) is entitled to receive a constituency allowance at the same rate as is payable to the Members of Parliament.